

25STCV35948 25STCV35948

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV35948 Hearing Date: September 3, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:33 PM on September 2, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 2, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that she was sexually

abused as a minor by Defendant Michael Cano who was a tutor at the LAUSD campus where Plaintiff was a student.

Defendant Los

Angeles Unified School District demurs to the First Amended Complaint.

TENTATIVE RULING

Defendant Los Angeles Unified School

District's demurrer to the First Amended Complaint is OVERRULED as to the third, fourth and fifth causes of action.

Defendant is ordered to answer the First Amended Complaint within 10 days.

ANALYSIS

Demurrer

Meet and Confer

The Declaration

of Arbel Illya reflects that Defendant's counsel satisfied the meet and confer requirement set forth in CCP § 430.41.

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant Los

Angeles Unified School District demurs to the First Amended Complaint as follows:

1. Third Cause

of Action (Negligent Hiring, Supervision & Retention of an Unfit Employee)

Defendant argues

that LAUSD is a public entity and is not subject to common law tort liability. (Gov. Code, § 815.) The Third Cause of Action identifies no statute imposing liability upon LAUSD.

However, case

law has held that Gov. Code § 815.2 imposes vicarious liability upon a public school district for administrators or supervisors' negligent hiring, supervising and retention of school employees.

Within

these limits, we conclude a public school district may be vicariously liable under section 815.2 for the negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student. Whether plaintiff in this case can prove the District's administrative or supervisory personnel were actually negligent in this respect is not a question we address in this appeal from dismissal on the sustaining of a demurrer.

(C.A. v. William S. Hart Union High Sch. Dist. (2012) 53 Cal.4th 861, 879 [bold emphasis added].)

Defendant also

argues that Plaintiff fails to plead facts establishing that Michael Cano was an employee of LAUSD within the meaning of Government Code section 815.2. Plaintiff alleges only that Cano was a “former employee and/or agent of LAUSD and/or TUTOR ME.” (FAC ¶ 5.)

However, the

allegation that Cano was a former employee of LAUSD is sufficient on demurrer. Plaintiff was 14 years old when she was sexually abused by Defendant Cano. (1AC, ¶ 5.) Plaintiff is not expected to know whether Cano was employed by LAUSD. Plaintiff is entitled to conduct discovery on this issue.

“The

demurrer admits the facts pleaded in the complaint and raises the question whether those facts are sufficient to state a cause of action on any legal theory. . . .

‘The function of a demurrer is to test the sufficiency of the complaint alone and not the evidence or other extrinsic matters. [Citation.]’ (Citation omitted.)” (Hellum v. Breyer (2011) 194 Cal.App.4th

1300, 1308-09.) “Because a demurrer challenges defects on the face of the

complaint, it can only refer to matters outside the pleading that are subject to

judicial notice.” (Arce v. Kaiser Foundation Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482.) “The sole issue raised by a general

demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. No matter how unlikely or improbable, plaintiff’s allegations must

be accepted as true for the purpose of ruling on the demurrer. (Citation omitted.)

Furthermore, plaintiff's possible inability or difficulty in proving the allegations of the complaint is of no concern. (Citation omitted.)" (Kerivan v. Title Ins. & Trust Co. (1983) 147 Cal.App.3d 225, 229.)

Defendant argues that Plaintiff fails

to plead facts establishing that LAUSD had actual or constructive knowledge of any prior misconduct by Cano rendering the alleged abuse foreseeable.

However, actual or constructive knowledge

of prior misconduct by Cano is not a prerequisite if LAUSD had actual or constructive knowledge of the actual misconduct of which Cano is alleged to have committed.

Plaintiff alleges:

14. Beginning in Fall

2023, MICHAEL CANO began paying special attention to Jane Doe while on campus at HLSLA. CANO complimented Plaintiff on her physical appearance and her intellectual abilities. CANO worked closely with Plaintiff in her math class at HLSLA and sought her out during school hours, and after school.

. . .

16. The grooming and

isolation of Jane Doe by MICHAEL CANO occurred on the HLSLA campus, in front of other HLSLA teachers, staff, and students.

. .

21. Prior to and during

MICHAEL CANO's abuse of Jane Doe, LAUSD and/or TUTOR ME students, administrators and personnel witnessed inappropriate "red flag" behavior by MICHAEL CANO towards Jane Doe, including but not limited to MICHAEL CANO and Jane Doe spending one on one time alone together on and off the HLSLA campus, CANO driving Plaintiff in his personal vehicle, CANO making improper, harassing statements to Jane Doe on the HLSLA campus, and CANO giving gifts to Jane Doe at HLSLA, during class. Despite witnessing these red flags, LAUSD and/or TUTOR ME, through its employees and personnel, did nothing further to investigate MICHAEL CANO's inappropriate relationship with Jane Doe and MICHAEL CANO was allowed to continue, unhindered, in his predatory conduct directed at Jane Doe.

(1AC, ¶¶ 14, 16, 21 [bold emphasis and underlining added].)

It is a question

of fact outside the scope of this demurrer as to how open and obvious Cano's grooming conduct of Plaintiff was on and off campus, and which LAUSD administrators or personnel witnesses or should have monitored such grooming interactions and intervened to prevent further isolated interactions between Cano and Plaintiff.

Defendant

also argue that this cause of action is uncertain. This argument is not persuasive because it is clear what is alleged against Defendant on the campus it operated. The details may be ascertained through discovery. Notably, the alleged incidents occurred relatively recently—2023/2024 (1AC, ¶¶ 13 – 18)—so there is higher likelihood of uncovering evidence and witness testimony than if the abuse occurred decades ago.

A demurrer for uncertainty is properly sustained

where the complaint is so vague or uncertain that the defendant cannot reasonably respond, i.e., when the defendant cannot determine what issues must be admitted or denied, or what counts are directed against the defendant. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; *Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial*, supra, ¶ 7:85.) Demurrers for uncertainty are disfavored and strictly construed "because ambiguities can reasonably be clarified under modern rules of discovery." (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.)

This cause of

action is sufficiently pled for purposes of demurrer.

The demurrer

to the third cause of action is OVERRULED.

2. Fourth Cause

of Action (Negligent Failure to Warn, Train or Educate).

Defendant argues

that Plaintiff fails to plead facts establishing that Cano was an LAUSD employee whom LAUSD had any duty to train.

For the reasons

discussed above re: the third cause of action, this argument is not persuasive.

Moreover, Plaintiff

alleges that, based on a special relationship the LAUSD has with Plaintiff, the LAUSD had harassment posed by staff:

45. Defendants LAUSD, TUTOR ME, and DOES

1 through 30 breached their duty to Plaintiff by failing to warn her of known and knowable dangers posed by its staff, including MICHAEL CANO; by failing to inform and educate her on its sexual harassment policies and the methods to identify, report, and respond to inappropriate sexual harassment by employees and student supervisors; and by failing to train its faculty and staff, including MICHAEL CANO, on sexual harassment policies.

(Complaint, ¶ 45.)

[A] school district and its employees have a special relationship with the district's pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, "analogous in many ways to the relationship between parents and their children." (Citations [*870] omitted.) Because of this special relationship, imposing obligations beyond what each person generally owes others under Civil Code section 1714, the duty of care owed by school personnel includes the duty to use reasonable measures to protect students from foreseeable injury at the hands of third parties acting negligently or intentionally. n3 This principle has been applied in cases of employees' alleged negligence resulting in injury to a student by another student (citations omitted) and—on facts remarkably close to the present case—injuries to a student resulting from a teacher's sexual assault (Citation omitted).

(C.A. v. William S. Hart Union High School Dist. (2012)
53 Cal.4th 861, 869-70.)

Defendant argues that Plaintiff fails to plead facts establishing that LAUSD knew or should have known of any specific, foreseeable danger posed by Cano giving rise to a duty to warn.

For the reasons discussed above re: the third cause of action, this argument is not persuasive.

Defendant also argue that this cause action is uncertain.

For the reasons
discussed above re: the third cause of action, this argument is not persuasive.

This cause of
action is sufficiently pled for purposes of demurrer.

The demurrer
to the fourth cause of action is OVERRULED.

3. Fifth Cause of Action (Negligent Supervision of a Minor).

Defendant argues that Plaintiff fails
to plead facts identifying any LAUSD employee whose negligent act or omission caused
Plaintiff's injuries, as required to state a claim under Government Code section
815.2.

Gov. Code § 815.2 provides:

(a) A public entity is
liable for injury proximately caused by an act or omission of an employee of the
public entity within the scope of his employment if the act or omission would, apart
from this section, have given rise to a cause of action against that employee or
his personal representative.

(b) Except as otherwise
provided by statute, a public entity is not liable for an injury resulting from
an act or omission of an employee of the public entity where the employee is immune
from liability.

(Gov. Code § 815.2.)

As discussed above re: the third cause
of action, case law has held that Gov. Code § 815.2 imposes vicarious liability
upon a public school district for administrators or supervisors' negligent hiring,
supervising and retention of school employees. (C.A., supra, 53 Cal.4th at 879.) This cause of action is sufficiently pled
in that regard, as discussed above re: the third cause of action.

Defendant argues that Plaintiff fails

to plead facts establishing that LAUSD had actual or constructive notice of any specific, foreseeable risk of sexual misconduct by Cano prior to the alleged abuse.

For the reasons discussed above re:
the third cause of action, this argument is not persuasive.

Defendant also argue that this cause
action is uncertain.

For the reasons discussed above re:
the third cause of action, this argument is not persuasive.

This cause of
action is sufficiently pled for purposes of demurrer.

The demurrer to the fifth cause of action
is OVERRULED.

Defendant is to answer the First Amended
Complaint within 10 days.